STORM WATER DRAINAGE EASEMENT AGREEMENT

This instrument is exempt from Michigan real estate transfer tax pursuant to MCL 207.526(a).
This instrument is exempt from county real estate transfer tax pursuant to MCL 207.505(a).

THIS STORM WATER DRAINAGE EASEMENT AGREEMENT (this "**Agreement**") is made this ____ day of _____, 2016, by and between **MICHAEL RAMM** and **TONYA RAMM**, husband and wife, whose address is 8988 Elstner Avenue NE, Rockford, MI 49341 ("**Grantor**") and **WOLVEN INVESTMENTS, LLC,** a Michigan limited liability company, whose address is 3115 Railway Drive, SW, Byron Center, MI 49315 ("**Wolven**") and **43 NORTH CONDOMINIUM ASSOCIATION**, a Michigan nonprofit corporation, whose address is 3115 Railway Drive, SW, Byron Center, MI 49315 ("**Association**" and collectively with Wolven, "**Grantee**").

Statement of Facts

1. Grantor owns certain real property located in Kent, Michigan, legally described on the attached **Exhibit A** (the "**Grantor Property**").

2. Wolven is the developer, and the Association is the association of owners of 43 North, a residential site condominium located in Kent, Michigan, legally described on the attached **Exhibit B** (the "**Grantee Property**").

3. Wolven desires to install storm sewers within that portion of the Grantor Property which is legally described and depicted on the attached **Exhibit C** as a 20' Storm Drain Easement (the "**Storm Sewer Easement Area**").

Agreement

NOW THEREFORE, for good and valuable consideration, the receipt and adequacy of which is hereby acknowledged, the parties agree as follows:

1. **Grant of Easement**. Grantor hereby creates and grants to Wolven and the Association, their successors and assigns, a nonexclusive perpetual easement for the construction, maintenance, repair and replacement of storm sewer improvements within the Storm Sewer Easement Area and for storm water drainage purposes over, under and across the 20' Floodway Easement legally described and depicted on the attached **Exhibit C**.

2. **Repair and Maintenance**. The Association shall maintain the storm sewer improvements installed by Wolven in the Storm Sewer Easement Area in good condition and repair at its sole cost and expense. Upon completion of any construction, maintenance, replacement or repairs, the Association will restore the Storm Sewer Easement Area to the same condition as it was prior to such construction, maintenance, replacement or repairs and without cost to Grantor, provided that Grantor shall repair any damage as the result of the negligent acts or omissions of Grantor, its agents, employees, representatives, or contractors.

3. **Lien Free**. Neither Wolven nor the Association shall permit any mechanics' or other liens to be filed against the Grantor Property in connection with any work performed by or on behalf of them and if any such lien is filed or recorded against the Grantor Property as a result of work performed by them, the Grantor shall have the right, after ten (10) days' prior written notice to the responsible party, to cause the same to removed or bonded and the responsible party shall reimburse Grantor for all reasonable costs and expenses incurred by Grantor in connection therewith.

4. **Acknowledgment**. Grantor and Grantee acknowledge and agree that the storm sewer improvements constructed pursuant to this Agreement are being designed by a licensed engineer and that Grantor does not intend to be responsible for any resulting storm water runoff resulting from the same.

5. **Covenants Running With the Land**. All of the provisions of this Agreement are intended to be, and shall be construed as, covenants running with the land and shall be binding upon, inure to the benefit of, and be enforceable by the parties hereto and their respective lessees, transferees, successors and assigns.

6. **No Gift or Dedication**. Nothing contained in this Agreement shall be deemed to be a gift or dedication of any portion of the easement areas to the general public or for any public purposes whatsoever, it being the intention that the easements created herein shall be strictly limited to and for the purposes expressed in this Agreement.

7. **Amendments**. This Agreement may not be amended, modified, rescinded, limited, or changed except by written agreement signed by the parties (or their successors and assigns).

8. **Governing Law**. This Agreement shall be construed, interpreted and applied in accordance with the laws of the State of Michigan.

9. **Counterparts**. This Agreement may be executed in one or more counterparts, and by separate counterpart signature pages, each of which shall be deemed to be an original.

10. **Severability**. If any term, provision or condition contained in this Agreement shall, to any extent, be invalid or unenforceable, the remainder of this Agreement (or the application of such term, provision or condition to persons or circumstances other than those in respect of which it is invalid or unenforceable) shall not be affected thereby, and each term, provision or condition of this Agreement shall be valid and enforceable to the fullest extent permitted by law.

[Signatures follow on the next page.]

This Agreement shall be effective as of the date first above written.

Grantor

_____
Michael Ramm

_____
Tonya Ramm

The foregoing instrument was acknowledged before me in _____ County, Michigan, this ___ day of _____, 2016 by Michael Ramm and Tonya Ramm, husband and wife.

_____

Notary Public, _____ County, Michigan
Acting in _____ County, Michigan
My commission expires: _____

Grantee

WOLVEN INVESTMENTS, LLC
a Michigan limited liability company

By: _____
Dale H. Kraker, Manager

43 NORTH CONDOMINIUM ASSOCIATION
a Michigan nonprofit corporation

By: _____
Dale H. Kraker, President

The foregoing instrument was acknowledged before me in _____ County, Michigan, this ___ day of _____, 2016 by Dale H. Kraker, the Manager of Wolven Investments, LLC, a Michigan limited liability company, on behalf of the company.

_____

Notary Public, _____ County, Michigan
Acting in _____ County, Michigan
My commission expires: _____

The foregoing instrument was acknowledged before me in _____ County, Michigan, this ___ day of _____, 2016 by Dale H. Kraker, the President of 43 North Condominium Association, a Michigan nonprofit corporation, on behalf of the company.

_____

Notary Public, _____ County, Michigan
Acting in _____ County, Michigan
My commission expires: _____

DRAFTED BY AND WHEN RECORDED RETURN TO:
Todd A. Hendricks (P45782)
Rhoades McKee PC
55 Campau Avenue NW, Suite 300
Grand Rapids, Michigan 49503

EXHIBIT A
TO
STORM WATER DRAINAGE EASEMENT AGREEMENT

LEGAL DESCRIPTION OF THE GRANTOR PROPERTY

Parcel F: Part of the Northwest 1/4 of Section 35, T9N, R11W, Algoma Township, Kent County, Michigan, Commencing at the West 1/4 corner of said Section; thence S00°35'20"W 1264.20 feet along the West line of said Section to the Place of Beginning; thence N89°52'07"E 281.02 feet; thence S00°35'20"W 172.78 feet; thence N89°24'40"W 281.00 feet; thence N00°35'20"E 169.25 feet along said West line to the Place of Beginning. Subject to the road right of way for Elstner Avenue over the West 33.0 feet thereof.

Commonly known as: 8988 Elstner Avenue NE, Rockford MI
Tax ID No.: 41-06-35-100-036

EXHIBIT B
TO
EASEMENT AGREEMENT

LEGAL DESCRIPTION OF THE GRANTEE PROPERTY

Part of the West 1/2 of Section 35, T9N, R11W, Algoma Township, Kent County, Michigan, described as: Commencing at the Northwest 1/4 corner of said Section; thence N89°52'07"E 849.42 feet along the North line of said Section to the Place of Beginning; thence continuing N89°52'07"E 487.12 feet along the North line of said Section; thence S00°39'11"W 2155.19 feet along the East line of the West 1/2 of the Northwest 1/4 of said Section; thence N89°20'49"W 33.00 feet; thence N61°42'26"W 462.35 feet; thence N34°23'25"E 141.03 feet; thence N55°45'10"W 66.00 feet; thence S34°23'25"W 144.99 feet; thence Southwesterly 33.15 feet along a 1233.00 foot radius curve to the left, the long chord of which bears S33°37'12"W 33.15 feet; thence N56°53'05"W 153.03 feet; thence Northwesterly 35.79 feet along a 50.00 foot radius curve to the right, the long chord of which bears N36°22'40"W 35.03 feet; thence Northwesterly 66.96 feet along a 60.00 foot radius curve to the left, the long chord of which bears N47°50'36"W 63.54 feet; thence N10°11'01"E 39.50 feet; thence N41°52'26"W 227.00 feet; thence N51°07'59"W 202.74 feet; thence N89°24'40"W 32.00 feet; thence N00°35'20"E 1019.55 feet along the East line of the West 281 feet of the Northwest 1/4 of said Section; thence N89°52'07"E 573.65 feet parallel with the North line of said Section; thence N00°07'53"W 417.42 feet to the Place of Beginning. Subject to the road rights of way for 11 Mile Road and Wolven Avenue, over the North and East 33.0 feet thereof. Contains 39.03 acres.

Also: Part of the West 1/2 of Section 35, T9N, R11W, Algoma Township, Kent County, Michigan, described as: Commencing at the Northwest 1/4 corner of said Section; thence N89°52'07"E 1336.54 feet along the North line of said Section; thence S00°39'11"W 2155.19 feet along the East line of the West 1/2 of the Northwest 1/4 of said Section to the Place of Beginning; thence continuing S00°39'11"W 173.52 feet along the East line of the West 1/2 of the Northwest 1/4 of said Section; thence N89°57'35"W 368.64 feet; thence S35°57'29"W 709.98 feet; thence N89°57'35"W 554.15 feet parallel with the East-West 1/4 line of said Section; thence N00°33'50"E 247.51 feet along the West line of said Section to the West 1/4 corner of said Section; thence N00°35'20"E 260.00 feet along the West line of said Section; thence S89°24'40"E 208.71 feet; thence N00°35'20"E 208.71 feet parallel with the West line of said Section; thence S89°24'40"E 104.29 feet; thence N00°35'20"E 750.00 feet along the East line of the West 313.00 feet of the Northwest 1/4 of said Section; thence S51°07'59"E 202.74 feet; thence S41°52'26"E 227.00 feet; thence S10°11'01"W 39.50 feet; thence Southeasterly 66.96 feet along a 60.00 foot radius curve to the right, the long chord of which bears S47°50'36"E 63.54 feet; thence Southeasterly 35.79 feet along a 50.00 foot radius curve to the left, the long chord of which bears S36°22'40"E 35.03 feet; thence S56°53'05"E 153.03 feet; thence Northeasterly 33.15 feet along a 1233.00 foot radius curve to the right, the long chord of which bears N33°37'12"E 33.15 feet; thence N34°23'25"E 144.99 feet; thence S55°45'10"E 66.00 feet; thence S34°23'25"W 141.03 feet; thence S61°42'26"E 462.35 feet; thence S89°20'49"E 33.00 feet to the Place of Beginning. Subject to the road right of way for Wolven Avenue over the East 33.0 feet thereof. Contains 21.19 acres.

Also: S 247.5 FT OF N 495.0 FT OF NW 1/4 SW 1/4 * SEC 35 T9N R11W 7.62 A Algoma Township, Kent County, Michigan (41-06-35-301-002), and S 341.52 FT OF N 836.52 FT OF NW 1/4 SW 1/4 * SEC 35 T9N R11W 9.98 A Algoma Township, Kent County, Michigan (41-06-35-301-003).

EXHIBIT C
TO
EASEMENT AGREEMENT

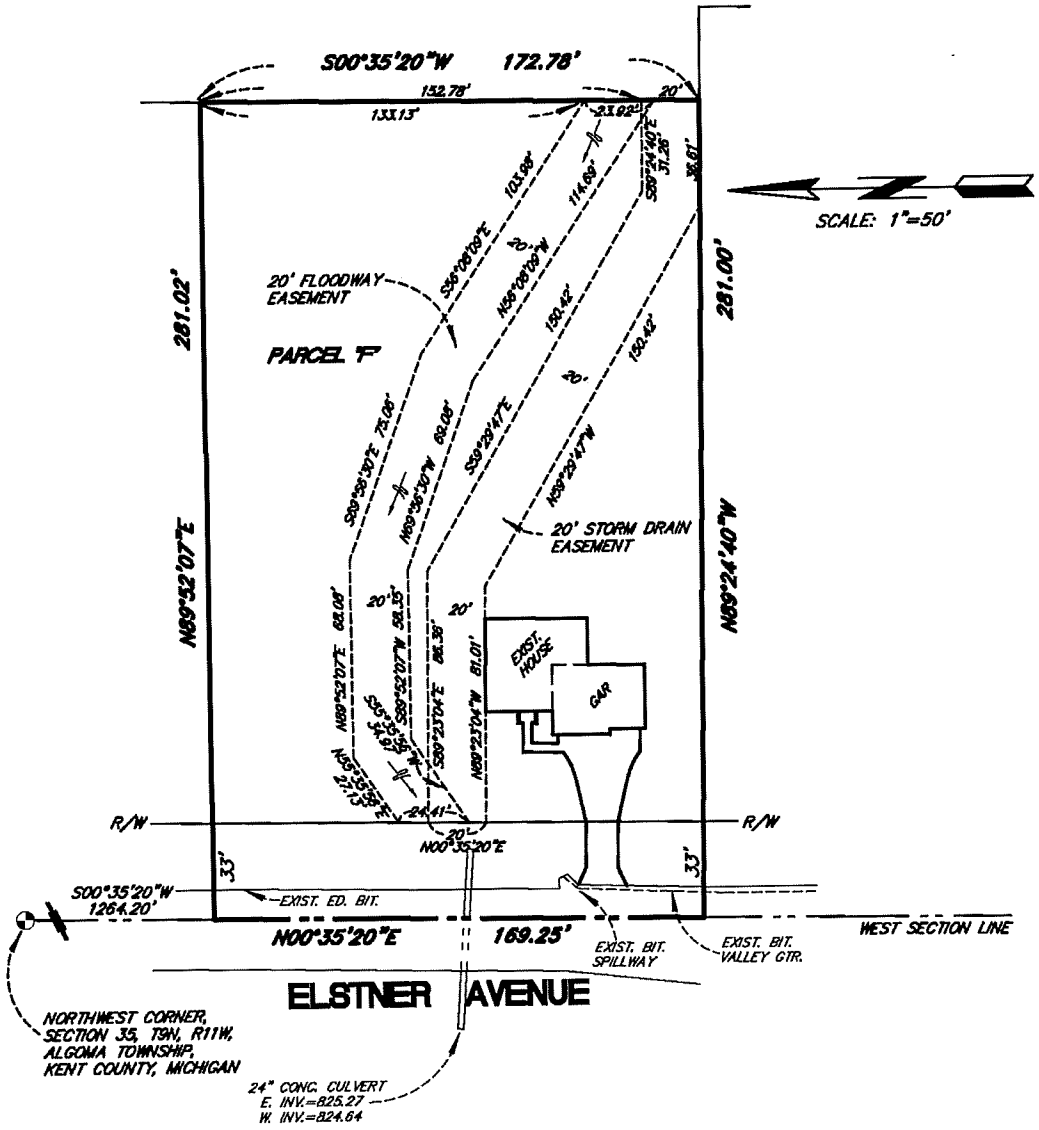
DRAINAGE AND FLOODWAY EASEMENTS

A 20' Storm Drain Easement in part of the Northwest 1/4 of Section 35, T9N, R11W, Algoma Township, Kent County, Michigan, described as: Commencing at the Northwest corner of said Section; thence S00°35'20"W 1264.20 feet along the West line of said Section; thence N89°52'07"E 281.02 feet; thence S00°35'20"W 152.78 feet to the Place of Beginning; thence continuing S00°35'20"W 20.00 feet; thence N89°24'40"W 36.61 feet; thence N59°29'47"W 150.42 feet; thence N89°23'04"W 81.01 feet to the East line of Elstner Avenue; thence N00°35'20"E 20.00 feet along said East line; thence S89°23'04'E 86.36 feet; thence S59°29'47"E 150.42 feet; thence S89°24'40"E 31.26 feet to the Place of Beginning of said easement.

A 20' Floodway Easement in part of the Northwest 1/4 of Section 35, T9N, R11W, Algoma Township, Kent County, Michigan, described as: Commencing at the Northwest corner of said Section; thence S00°35'20"W 1264.20 feet along the West line of said Section; thence N89°52'07"E 281.02 feet; thence S00°35'20"W 133.13 feet to the Place of Beginning; thence continuing S00°35'20"W 23.92 feet; thence N56°08'09"W 114.69 feet; thence N69°56'30"W 69.08 feet; thence S89°52'07"W 58.35 feet; thence S55°35'56"W 34.97 feet to the East line of Elstner Avenue; thence N00°35'20"E 24.41 feet along said East line; thence N55°35'56"E 27.13 feet; thence N89°52'07"E 68.08 feet; thence S69°56'30"E 75.06 feet; thence S56°08'09"E 103.98 feet to the Place of Beginning of said easement.

EXHIBIT C
TO
EASEMENT AGREEMENT

DEPICTION OF
DRAINAGE AND FLOODWAY EASEMENTS



This drawing is for legal description purposes only. No property corners were set and no improvements were located.

LEGEND

- o - IRON STAKE – SET
- ● - IRON FOUND
- □ - WOOD STAKE
- R - RECORDED DIMENSION
- D - DEED DIMENSION
- P - PLATTED DIMENSION
- M - MEASURED DIMENSION
- ℄ - CENTERLINE
- x-x - FENCE LINE

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KEVIN ROOSIEN
LAND SURVEYOR
No. 31604
PROFESSIONAL SURVEYOR

BY Kevin Roosien

588559